P.B. No. 35

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

BANGSAMORO AUTONOMY ACT NO. 61

Begun and held in Cotabato City, on Thursday, the 15th day of September 2022.

AN ACT ESTABLISHING A BANGSAMORO MEMORIAL MARKER AND ECO-PARK IN CAMP ABUBAKAR, MUNICIPALITY OF BARIRA, MAGUINDANAO DEL NORTE TO HONOR THE *SHUHADA*/MARTYRS OF THE BANGSAMORO STRUGGLE WHO GAVE AND DEVOTED THEIR LIVES FOR THE RIGHT TO SELF-DETERMINATION AND FREEDOM OF THE BANGSAMORO, PROVIDING FUNDS THEREFOR, AND FOR OTHER PURPOSES

Be it enacted by the Bangsamoro Transition Authority Parliament assembled:

SECTION 1. ***The Short Title.*** – This Act shall be known and cited as the *"Bangsamoro Memorial Marker Act of 2024."*

SEC. 2. ***Declaration of Policy.*** – It is hereby declared the policy of the Bangsamoro Government to:

(a) Promote unity, peace, justice, and goodwill among all people;

(b) Ensure every Filipino, in its territorial jurisdiction, the provision of the basic necessities and equal opportunities in life. Social Justice shall be promoted in all aspects of life and phases of development in the Bangsamoro Autonomous Region;

(c) Ensure that indigenous peoples shall have the freedom to retain their distinct indigenous and ethnic identity in addition to their Bangsamoro political identity; and

(d) Ensure and support the preservation and enrichment of culture, promote health and safety, and enhance the right of the people to a balanced ecology.

SEC. 3. ***Definition of Shuhada.*** – For the purpose of this Act, *"shuhada"* shall refer to individuals who gave and devoted their lives directly or indirectly engaging in the armed struggle to assert the right to self-determination and freedom of the Bangsamoro.

SEC. 4. ***Bangsamoro Memorial Marker.*** – The Bangsamoro Memorial Marker shall include a list of names of the *"shuhada."*

SEC. 5. ***Bangsamoro Eco-Park.*** – There shall be created a Bangsamoro Eco-Park which shall be located in Camp Abubakar, Municipality of Barira, Maguindanao del Norte. It shall be constructed, properly landscaped, and designed with structures and ornaments that are reflective of Bangsamoro culture and arts. It shall also be provided with complete facilities such as, but not limited to, a multi-purpose hall, children's playground, parking area, comfort rooms and wash areas, and access roads. The memorial marker shall be built within the said eco-park.

SEC. 6. ***Construction, Maintenance, and Management of the Bangsamoro Memorial Marker and Eco-Park.*** – The Bangsamoro Memorial Marker and Eco-Park shall be constructed, maintained, and managed under the supervision and control of the Bangsamoro Memorial Management Board (BMMB) created herein.

SEC. 7. ***Bangsamoro Memorial Management Board.*** – There shall be created a BMMB. It shall be chaired by the Bangsamoro Commission for the Preservation of Cultural Heritage (BCPCH) with members from Ministry of Public Works; Ministry of Trade, Investments, and Tourism; Bangsamoro Darul-Ifta'; Ministry of Basic, Higher, and Technical Education; Ministry of Environment, Natural Resources and Energy; Local Government Unit of Barira, Maguindanao del Norte; and a representative from each province of the Bangsamoro Autonomous Region. The BCPCH shall also serve as the secretariat of the BMMB.

SEC. 8. ***Functions and Responsibilities of the Bangsamoro Memorial Management Board.*** – The BMMB shall perform the following:

(a) Establish eligibility criteria for the identification and inclusion of the names in the Bangsamoro Memorial Marker;

(b) Determine the metes and bounds of the land area where the Bangsamoro Eco-Park will be situated;

(c) Authorize to engage in collaborations, partnerships, and joint ventures with other government agencies, non-governmental organizations (NGOs), academic institutions, businesses, and other entities for the purposes of promoting the objectives and activities related to the establishment, maintenance, and management of the Bangsamoro Memorial Marker and Eco-Park, subject to applicable laws, rules and regulations;

(d) Ensure the establishment and functionality of a grievance mechanism in the implementation of this Act;

(e) Submit to the Office of the Chief Minister a final list of names for inclusion on the Bangsamoro Memorial Marker that meets the criteria in the preceding paragraph;

(f) Monitor the construction of the Bangsamoro Memorial Marker and Eco-Park and ensure that its structure conforms to the standards and designs set by them;

(g) Formulate plans, programs, policies, rules, and regulations necessary for the discharge of its powers and functions as well as its internal organization and operations;

(h) Consult and actively involve local communities and stakeholders in the planning and development of the memorial marker and eco-park, ensuring their ownership and cultural relevance; and

(i) Such other functions as may be necessary or incidental to the proper implementation of the provisions of this Act.

SEC. 9. ***Dissolution of the Bangsamoro Memorial Management Board.*** – Upon the completion and turnover of the Bangsamoro Memorial Marker and Eco-Park to the BCPCH, the BMMB shall be dissolved.

All functions, duties, and responsibilities of the BMMB shall cease upon its dissolution. Any remaining assets, liabilities, or ongoing matters shall be transferred to the BCPCH for continuation or resolution as necessary.

This section shall take effect immediately upon the completion and turnover of approved projects of the Bangsamoro Memorial Marker and Eco-Park.

SEC. 10. ***Appropriations.*** – Necessary funds for the purpose of this Act shall be provided for in the annual appropriations of the BCPCH. An initial fund of Fifteen Million Pesos (PHP 15,000,000.00) is hereby appropriated for this purpose.

SEC. 11. ***Authority to Accept Grants, Donations, and Engage in Collaborations.*** – The BMMB is hereby granted the authority to accept grants, donations, and contributions, whether in cash or in kind, from various public and private entities, both domestic and foreign, subject to applicable laws, rules, and regulations.

Furthermore, the BMMB is authorized to engage in collaborations, partnerships, and joint ventures with other government agencies, NGOs, academic institutions, businesses, and other entities for the purposes of promoting the objectives and activities related to the establishment, maintenance, and management of the Bangsamoro Memorial Marker and Eco-Park.

The BMMB shall ensure transparency and accountability in the acceptance of grants, donations, and collaborations, and shall comply with all relevant reporting and regulatory requirements governing such transactions.

SEC. 12. ***Repealing Clause.*** – Any regional law or issuance, executive order or letter of instruction, administrative order, rules, or regulation contrary to, or inconsistent with the provisions of this Act are hereby repealed or modified accordingly.

SEC. 13. ***Separability Clause.*** – Should any provisions of this Act or any part thereof be declared invalid, other provisions, so far as they are separable from the invalid ones, shall remain in full force and effect.

SEC. 14. ***Effectivity.*** – This Act shall take effect fifteen (15) days after its publication in the Official Gazette or a newspaper of general circulation in the Bangsamoro Autonomous Region.

ATTY. PANGALIAN M. BALINDONG
Speaker

This Act was passed by the Bangsamoro Transition Authority Parliament on *Safar* 15, 1446/August 19, 2024.

PROF. RABY B. ANGKAL
Secretary-General

Approved:

AHOD B. EBRAHIM
Chief Minister
Date: SEP 19 2024

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